



CHAPTER c.

An Act to provide for the transfer of the undertaking of the Newbury District Water Company Limited to the Newbury Corporation to authorise the Corporation to supply water in and in the neighbourhood of their borough to make further provision with regard to the improvement of the borough and the consolidation of rates and for other purposes. [7th August 1925.]

A.D. 1925.

WHEREAS the borough of Newbury (in this Act called "the borough") is under the local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas the Newbury District Water Company Limited (in this Act called "the company") are authorised by the Newbury District Water Order 1876 to supply water within the limits of supply authorised by that Order which include the borough:

And whereas the company have agreed with the Corporation for the transfer of their undertaking to the Corporation and it is expedient that the agreement (a copy of which is set forth in the First Schedule to this Act) should be confirmed and that provision should be made for carrying it into effect and that power should be conferred upon the Corporation as is in this Act contained in relation to the said undertaking and that the limits of the Corporation for the supply of water should

A.D. 1925. be the limits of supply of the Company extended as by this Act provided :

And whereas it is expedient to confer upon the Corporation the further powers with regard to the supply of water contained in this Act :

And whereas it is expedient to empower the Corporation to purchase the business of the Newbury Pure Ice and Cold Storage Company Limited and to authorise the Corporation to maintain and carry on cold air stores :

And whereas it is expedient that further provision should be made with regard to the improvement of the borough as by this Act provided :

And whereas it is expedient to provide for the consolidation of the rates levied in the area of the borough :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

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(a) For the purchase of land and interests therein - - - - -	3,500
(b) For water mains pipes and apparatus	20,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans of the lands to be acquired under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Berks and are in this Act respectively referred to as the deposited plans and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent

Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PART I.

PRELIMINARY.

1. This Act may be cited as the Newbury Corporation Act 1925. Short title.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Transfer of undertaking of water company.

Part III.—Supply of water.

Part IV.—Cold air stores.

Part V.—Lands.

Part VI.—Parks and recreation grounds.

Part VII.—Rating provisions.

Part VIII.—Financial and miscellaneous provisions.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

Incorpora-
tion of Acts.

(1) The Lands Clauses Acts with the following exception and modification:—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section:

(2) The Waterworks Clauses Act 1847 except—

(a) the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

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—

(b) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) section 83 (with respect to the yearly receipt and expenditure of the undertakers); and

(3) The Waterworks Clauses Act 1863.

Interpreta-
tion.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts or referred to therein have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Newbury;

“The borough” means the borough of Newbury;

“The council” means the council of the borough;

“The mayor” “the town clerk” “the treasurer” and “the surveyor” mean respectively the mayor the town clerk the treasurer and the surveyor of the borough;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“The company” means the Newbury District Water Company Limited;

“The scheduled agreement” means the agreement set forth in the First Schedule to this Act;

“The ice company” means the Newbury Pure Ice and Cold Storage Company Limited;

“The undertaking of the company” means the water undertaking of the company described in the scheduled agreement;

“The day of transfer” means the day on which the purchase of the undertaking of the company is completed in accordance with paragraph 3 (a) of the scheduled agreement;

“ The water undertaking ” means the water under- A.D. 1925.
taking of the Corporation ;

“ The water limits ” means the limits of the Corporation for the supply of water and includes the borough and the parishes of Cold Ash Enborne Greenham Sandleford Shaw-cum-Donnington Speen and Thatcham in the rural district of Newbury and the parish of West Woodhay in the rural district of Hungerford all in the county of Berks and the parishes of East Woodhay and Newtown in the rural district of Kingsclere in the county of Southampton ;

“ The tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 ;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not

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include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction.

(2) In the construction of the provisions of the Lands Clauses Acts and of the Waterworks Clauses Acts 1847 and 1863 incorporated with this Act the expressions “the promoters of the undertaking” and “the undertakers” mean respectively the Corporation.

PART II.

TRANSFER OF UNDERTAKING OF WATER COMPANY.

Confirma-
tion of
scheduled
agreement.

5.—(1) The scheduled agreement is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to the modification that in paragraph 6 of the scheduled agreement the application of the provisions of section 120 of the Local Government Act 1888 shall be varied by the substitution of an arbitrator appointed by the Minister of Health for the Treasury in the said section and to such further modifications (if any) as may be agreed between the said parties in writing under their respective common seals.

(2) The sale of the undertaking and business of the company shall be carried into effect by a deed which may be in the form set forth in the Second Schedule to this Act or to the like effect or in such other form as may be agreed between the company and the Corporation and on the execution of the deed by the company the undertaking and business of the company shall by virtue of the deed and of this Act be transferred to and become vested in the Corporation and such transfer and vesting are referred to in this Act as “the transfer.”

Actions &c.
not to abate
and penal-
ties to be
recoverable.

6.—(1) Subject as between the Corporation and the company to the provisions of the scheduled agreement and without prejudice to any remedy over by the Corporation against the company no action suit prosecution or other proceeding whatsoever commenced either by or against the company in relation to any property right privilege

debt liability or obligation transferred to the Corporation shall abate or be discontinued or prejudicially affected by reason of the transfer but the same shall continue and take effect either in favour of or against the Corporation in the same manner in all respects as the same would have continued and taken effect in relation to the company if the transfer had not been made and all penalties incurred by reason of any offence against any of the provisions of any enactment of the company previously to the day of transfer may be sued for and all offences committed against the company previously to the day of transfer may be prosecuted by the Corporation in such or the like manner to all intents and purposes as such penalties might have been sued for or such offences prosecuted if the transfer had not taken place and all moneys payable to the company prior to the day of transfer may be sued for and recovered by the Corporation in the same manner in all respects as the same might have been sued for and recovered by the company if this Act had not been passed.

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(2) This section shall not apply to any proceedings relating to the amount due to the shareholders of the company in respect of their several shares in the company and the dividends accrued due thereon up to the day of transfer.

7. Subject to the provisions of the scheduled agreement all agreements contracts deeds and other instruments affecting the company and in force at the day of transfer shall after that day be as binding and of as full force and effect against or in favour of the Corporation and may be continued or enforced as fully and effectually as if instead of the company the Corporation had been a party thereto.

Contracts to be binding on Corporation.

8. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same and the like matter for or against the Corporation.

Books &c. to remain evidence.

9. From and after the day on which the sale and purchase of the undertaking of the company shall have been actually completed the company shall continue to exist only for the purpose of receiving and recovering the sums payable to the company under the scheduled agreement and distributing or otherwise applying the

Company to wind up their affairs.

A.D. 1925. same and of winding up the affairs of the company and carrying into effect the purposes of this Act so far as they relate to the company and for the purposes of such winding up the company shall be deemed to have resolved by special resolution that the company be wound up voluntarily within the meaning of the Companies (Consolidation) Act 1908 and the company shall be wound up in accordance with the provisions of that Act as soon as may be practicable. The directors of the company who are in office on the day of transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the company until the appointment of a liquidator in the said winding up and pending such appointment they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section. If the number of directors of the company be reduced by death resignation or otherwise below three before the appointment of a liquidator in such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the company to fill the vacancy or vacancies so caused.

Copy of Act
to be regis-
tered.

10.—(1) The company shall deliver to the registrar of joint stock companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the company who knowingly and wilfully authorises such default shall incur a like penalty. Every penalty under this section shall be recoverable summarily.

(2) There shall be paid to the registrar by the company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

Repeal of
Company's
Order.

11. As from the day of transfer the Newbury District Water Order 1876 shall be repealed.

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PART III.

SUPPLY OF WATER.

12. The Corporation may maintain repair renew alter enlarge and extend or may discontinue the wells and pumping stations reservoirs mains pipes and other waterworks for the time being belonging to them by virtue of this Act including the well and pumping station set out in the Third Schedule to this Act and may use and employ the same for the purpose of taking intercepting and supplying water and may take and intercept any water which might have been taken or intercepted by the company if this Act had not been passed and may sell and supply water within the water limits.

Power to maintain waterworks and supply water.

13. The Corporation shall not construct any works for taking or intercepting water for supply from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament or Order confirmed by Parliament.

Limiting powers of Corporation to abstract water.

14.—(1) Subject to the provisions of this Act the Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of the water undertaking but (except with the consent of the Minister of Health) the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed ten acres and the Corporation may on all or any of such additional lands execute for the purposes of or in connection with their waterworks any of the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 (Undertakers subject to provisions of this and the special Act may execute the works herein named) of the Waterworks Clauses Act 1847.

Power to purchase additional lands by agreement.

(2) Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment

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Further
powers in
relation to
water
mains.

15. The Corporation shall have and may exercise within the water limits the powers which a local authority would have under section 54 (Power of carrying mains) of the Public Health Act 1875 with respect to the carrying of water mains within and without their district and for the purposes of that section the water limits shall be deemed to be the district of the Corporation.

Power to
hold lands
and exer-
cise powers
for protec-
tion of
waters.

16.—(1) For the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Corporation are empowered to take the Corporation may by agreement purchase take on lease or otherwise acquire any lands easements or rights and may hold such lands and any other lands which the Corporation may have acquired for the purposes of the water undertaking so long as they shall deem it necessary or expedient for those purposes :

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Corporation.

(2) The Corporation may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses catchpits and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any land with reference to the execution by the Corporation or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Corporation are for the time being authorised to take.

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17. The Corporation on selling any lands acquired by them in connection with the water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of water
rights &c.
on sale.

18.—(1) For the purpose of constructing enlarging extending altering repairing cleansing or examining any of the waterworks of the Corporation the Corporation may cause the water in any such works to be temporarily discharged into any available stream or watercourse.

Temporary
discharge
of water
into
streams.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration.

(3) The powers of this section shall not be exercised so as to damage or affect the railways or works of the Great Western Railway Company.

19.—(1) The Corporation may erect or lay down within the water limits for the purposes of the water undertaking discharge pipes telephone or telegraph posts wires conductors or apparatus and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall with the necessary modifications apply within the water limits to the construction

Application
of Water-
works
Clauses Act
1847
to discharge
pipes and
telephones.

A.D. 1925. laying down erection and maintenance in any streets or roads of any such discharge pipes telephone or telegraph posts wires conductors or apparatus.

(2) Any telephone or telegraph posts wires conductors or apparatus erected or laid down by the Corporation under the authority of this section shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Power to
lay pipes
in private
streets.

20. The Corporation may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply as if section 29 (Undertakers not to enter on private land without consent) of that Act were excepted from incorporation with this Act.

Meters in
streets to
measure
water or
detect
waste.

21.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Corporation may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus.

(2) Provided that the Corporation shall not interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

Pressure.

22. The water to be supplied by the Corporation need not be constantly laid on under pressure greater than can be supplied by gravitation from the reservoir from which the supply shall be taken.

23.—(1) In respect of every dwelling-house or part of a dwelling-house supplied by the Corporation with water for domestic purposes there shall be paid to the Corporation in respect of such supply a rate per annum not exceeding :—

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Rates for
supply of
water for
domestic
purposes.

Where the gross estimated rental of the premises so supplied with water shall not exceed five pounds the sum of eight shillings and eightpence;

Where such gross estimated rental shall exceed five pounds and not exceed ten pounds the sum of sixteen shillings;

Where such gross estimated rental shall exceed ten pounds and not exceed fifteen pounds the sum of twenty-four shillings;

Where such gross estimated rental shall exceed fifteen pounds and not exceed twenty pounds the sum of thirty-two shillings;

Where such gross estimated rental shall exceed twenty pounds and not exceed twenty-five pounds the sum of thirty-nine shillings;

Where such gross estimated rental shall exceed twenty-five pounds and not exceed thirty pounds the sum of forty-six shillings;

Where such gross estimated rental shall exceed thirty pounds and not exceed thirty-five pounds the sum of fifty-three shillings;

Where such gross estimated rental shall exceed thirty-five pounds and not exceed forty pounds the sum of sixty shillings;

Where such gross estimated rental shall exceed forty pounds and not exceed forty-five pounds the sum of sixty-six shillings;

Where such gross estimated rental shall exceed forty-five pounds and not exceed fifty pounds the sum of seventy-two shillings;

Where such gross estimated rental shall exceed fifty pounds and not exceed fifty-five pounds the sum of seventy-eight shillings;

Where such gross estimated rental shall exceed fifty-five pounds and not exceed sixty pounds the sum of eighty-four shillings;

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Where such gross estimated rental shall exceed sixty pounds and not exceed sixty-five pounds the sum of eighty-nine shillings;

Where such gross estimated rental shall exceed sixty-five pounds and not exceed seventy pounds the sum of ninety-four shillings;

Where such gross estimated rental shall exceed seventy pounds and not exceed seventy-five pounds the sum of ninety-nine shillings;

Where such gross estimated rental shall exceed seventy-five pounds and not exceed eighty pounds the sum of one hundred and four shillings;

Where such gross estimated rental shall exceed eighty pounds and not exceed eighty-five pounds the sum of one hundred and eight shillings;

Where such gross estimated rental shall exceed eighty-five pounds and not exceed ninety pounds the sum of one hundred and twelve shillings;

Where such gross estimated rental shall exceed ninety pounds and not exceed ninety-five pounds the sum of one hundred and sixteen shillings;

Where such gross estimated rental shall exceed ninety-five pounds and not exceed one hundred pounds the sum of one hundred and twenty shillings;

Where such gross estimated rental shall exceed one hundred pounds at a rate per centum not exceeding five pounds ten shillings.

(2) In addition to the foregoing charges the Corporation may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the water limits a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding fifteen shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Corporation may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

(3) The Corporation may demand and take for supplying water for domestic and other purposes within

the part of the water limits beyond the borough and the parish of Speen such rates and charges as the Corporation may think fit not exceeding by more than twenty-five per centum the rates and charges upon which the Corporation for the time being supply water within the borough and the said parish and the terms and conditions upon which any such supply shall be given shall be the same as those upon which a company or person in the borough and the said parish is entitled under similar circumstances to a corresponding supply.

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24. The Minister of Health may at any time after the expiration of three years' after the transfer on the application of the Corporation or of the local authorities within the water limits but outside the borough review and if necessary revise by way either of increase or decrease the maximum rates for the supply of water authorised by this Act so that such revised rates and charges shall be sufficient so far as can be estimated to enable the water undertaking to be carried on without loss. Provided that at any time after the expiration of three years from such review or any review under this proviso of the said rates and charges the said Minister may on the like application similarly review and if necessary revise the said rates and charges for the time being in force.

Revision of
water rates
and charges.

25. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Corporation be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-eighth part of such expense.

Amendment
of section 35
of Water-
works
Clauses Act
1847.

26. Any rural district council in respect of the part of their district within the water limits may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums of money at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any pipe or works for the supply of water within any part of such district which is within the water limits.

Guarantees
by rural
district
councils.

27. Notwithstanding anything contained in section 70 (Rates to be paid quarterly in advance) of the

Dates for
payment of
water rates.

A.D. 1925. Waterworks Clauses Act 1847 the Corporation may by resolution declare that their water rates and charges shall be payable at such date or dates as the Corporation may from time to time appoint :

Provided that no person shall be compellable to pay water rates or charges so demanded for any longer period in advance than three months.

Rates
payable by
owners of
small
houses.

28. Where any premises supplied with water are let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner :

Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Supply of
water by
hose pipe to
stables &c.

29. When water of the Corporation supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the Corporation may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum (and where more motor cars than one are ordinarily kept a further sum not exceeding ten shillings per annum for each motor car beyond the first as the Corporation may prescribe) and any sum charged under the provisions of this section shall be paid quarterly in advance and be recoverable in the same manner as water rates.

Supply of
water to
houses
partly used
for trade
&c.

30.—(1) The Corporation shall not be bound to supply with water otherwise than by measure (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or (b) any workhouse public institution hospital asylum (whether public or private) sanatorium club hotel public-house or inn or (c) any boarding-house capable of accommodating twenty or more persons including the persons

usually resident therein or (d) any school not maintained by the local education authority. A.D. 1925.

(2) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the gross estimated rental thereof.

(3) The minimum quarterly charge for a supply of water by measure to any of the premises in this section mentioned shall be one fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same gross estimated rental.

31. The Corporation may supply water for other than domestic purposes on such terms and conditions as the Corporation think fit and may supply water by meter either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates : Supply by meter.

Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

32. The price to be charged by the Corporation for a supply of water by meter shall not exceed— Price of supply of water by meter.

(a) For water supplied to any local authority for sanitary purposes or street watering within the limits of supply one shilling and sixpence per one thousand gallons ;

(b) For water supplied by meter for any other purposes two shillings per one thousand gallons.

33.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this Act referred to as “ water Byelaws for preventing waste &c. of water.

A.D. 1925. fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation as the water rates in respect of the premises are recoverable.

(4) Nothing in this section shall apply to any water fittings or premises belonging to the Great Western Railway Company.

Power to
person
liable to
maintain
pipes &c.
to open
ground.

34.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 to 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made.

Power to
Corporation
to repair
communi-
cation pipes.

35.—(1) If by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful

for the Corporation by and under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. A.D. 1925.
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(2) Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given notice to the occupier of such house or premises and in any case where the communication pipe is repairable by the owner thereof to such owner not less than twenty-four hours' previous notice of their intention so to enter.

36. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Corporation not bound to supply several houses by one pipe.

37. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation or other officer duly authorised in that behalf by the Corporation. Main-tenance of common pipe.

38. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell meters.

39. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and Notice to Corporation of connecting or disconnecting meters.

A.D. 1925. — all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for any such offence be liable to a penalty not exceeding forty shillings.

Register of
meter to be
primâ facie
evidence.

40.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be primâ facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Corporation.

(2) Provided that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Injuring
meters &c.

41.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the

offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. A.D. 1925.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

42.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and execute all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same. Power to supply fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof.

(3) Provided as follows:—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof

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as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);

(b) When a demand note delivered by the Corporation to a consumer includes a sum charged by the Corporation in respect of providing such fitting or the repairing fixing or removal thereof such sum shall be clearly stated in such demand note;

(c) The total sums expended and received by the Corporation in connection with the purposes in this section mentioned in every year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

Interference
with valves
pipes and
fittings.

43. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Notice of
discon-
tinuance.

44. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the Corporation.

Contracts
for supply
of water
in bulk.

45.—(1) The Corporation and any local authority company body or person may enter into and carry into effect agreements for and in relation to the supply of water by the Corporation beyond the water limits to any such authority company body or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions as may be agreed upon.

(2) Provided that—

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- (a) a supply of water under this section shall not be given beyond the water limits except with the consent of any company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits;
- (b) nothing in this section shall authorise the Corporation to lay any mains or other pipes or to interfere with any street beyond the water limits;
- (c) nothing in this section shall authorise the Corporation to supply water in bulk outside or for consumption or use outside the catchment area of the Thames as such catchment area is defined by section 5 of the Thames Conservancy Act 1924.

46. The Corporation may purchase or take on lease and maintain houses and buildings for persons in their employment in connection with the water undertaking and for offices and other buildings for the purposes of that undertaking and may also erect maintain and let any such buildings upon any land for the time being belonging or leased to the Corporation for those purposes.

Dwelling-houses for employees and other buildings.

47. The rural district councils in whose areas the parishes within the water limits are situate (herein referred to as "the local authorities") may by giving to the Corporation six calendar months' previous notice in writing at any time after the expiration of twenty-one years after the passing of this Act require the Corporation to sell and thereupon the Corporation shall sell to the local authorities so much of the water undertaking as is situate outside the borough (including all lands buildings works materials and plant outside the borough suitable to and used by the Corporation solely for the supply of water within the areas of the local authorities) upon the terms of the local authorities paying to the Corporation the then value of all lands buildings works materials and plant of the Corporation suitable to and used by them

Power to purchase part of undertaking outside borough.

A.D. 1925. — for the purposes of their undertaking within the said areas such value to be determined in default of agreement by arbitration under the Arbitration Act 1889 the arbitrator to be appointed by the Minister of Health on the application of either party Provided that the value of such lands buildings works materials and plant shall be deemed to be their fair market value at the time of the purchase due regard being had to the nature and then condition of such buildings works materials and plant and to the state of repair thereof and to the circumstance that they are in such a position as to be ready for immediate working and to the suitability of the same for the purposes of the undertaking and to any loss occasioned by severance but without any addition in respect of compulsory purchase or of goodwill or of any profits which may or might have been or be made from the undertaking or any similar considerations.

For protec-
tion of
Berkshire
County
Council.

48. The following provisions for the protection of the county council of the administrative county of Berks (in this section called "the county council") shall unless otherwise agreed have effect with regard to so much of the water limits as is outside the limits of supply authorised by the Newbury District Water Order 1876 (that is to say) :—

- (1) All mains pipes and other works to be laid by the Corporation in or along any main road or in or upon or across any county or main road bridge (which word shall in this section include bridge approaches) shall be laid in such position in or at the side thereof and if under the metalled portion thereof at such depth as the county council in writing under the hand of their clerk or surveyor may reasonably require :
- (2) The notice required by section 30 of the Waterworks Clauses Act 1847 with respect to the breaking up of streets main roads or county or main road bridges shall except in case of emergency as regards any such street main road or county or main road bridge be not less than seven days instead of three days :
- (3) The plan required by section 31 of the Waterworks Clauses Act 1847 shall except in case of emergency be accompanied by a description of

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the proposed works in the case of any main road and by a section in the case of any county or main road bridge and shall be delivered to the county council or their surveyor by the Corporation not less than fourteen days before they commence to open or break up any main road or interfere with any county or main road bridge for the purpose of executing the works :

- (4) Nothing in this Act shall authorise the Corporation to interfere with the structural part of any county or main road bridge without the consent of the county council under the hand of their clerk or surveyor which consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine. Provided that the county council shall not be entitled to require as a condition of giving their consent under this subsection the payment to them by the Corporation of any money other than the amount of any expenses which the county council may reasonably incur by reason or in consequence of any such interference as aforesaid but nothing in this proviso shall preclude the county council from requiring the Corporation as a condition of giving such consent as aforesaid to make good at the expense of the Corporation any damage caused by them to the structure of any such bridge aforesaid :
- (5) Nothing in this Act contained shall interfere with the right of the county council to alter the level of or deviate or improve in any manner they think fit any main road in or along which any mains pipes or works of the Corporation shall have been laid and in the event of any such main road being altered deviated or improved the Corporation shall with all reasonable despatch after receiving notice under the hand of the clerk or surveyor to the county council so to do alter the position of any mains pipes or works laid or constructed after the date of this Act in the manner and to the extent reasonably prescribed by such notice

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or as in the case of difference shall be determined by arbitration in the manner hereinafter provided and the expenses of any alteration of the position of any such pipes mains or works shall if the county council and the Corporation fail to agree be borne as the arbitrator may direct :

- (6) Nothing in this Act contained shall limit the right of the county council at any time or times to remove alter or rebuild any county or main road bridge over near or attached to which any mains pipes or works of the Corporation are carried in the same manner as they might have removed altered or rebuilt such bridge if this Act had not been passed and such mains pipes or works had not been laid over or near or attached to such bridge and the county council shall not make any compensation to the Corporation for any expense or loss to which the Corporation may be put in consequence of the reasonable exercise of such right and in the event of any such bridge over or near or attached to which any such mains pipes or works are laid being removed altered or rebuilt as aforesaid the Corporation shall if required by the surveyor of the county council at their own cost in all things alter the position of any works by which such mains pipes or works are carried over or near or attached to such bridge Provided that during the removal alteration or rebuilding of such bridge the county council shall at the cost of the Corporation afford all reasonable facilities for temporarily carrying such mains pipes and works across such bridge overhead or at the side thereof in such a manner as will not in the opinion of the county council or their surveyor be a danger or inconvenience to the public and so as not to interrupt the continued supply of water through such mains pipes or works and the Corporation may temporarily carry such mains pipes or works accordingly :
- (7) All works of the Corporation so far as they affect any main roads or county or main road bridges shall be so executed by the Corporation as not

to stop the traffic and so far as reasonably practicable as not to impede or interfere with the traffic on any main road or over any county or main road bridge and the Corporation shall not without the consent of the county surveyor open or break up at any one time a greater length than one hundred yards of any such road :

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- (8) The Corporation shall pay to the county council the reasonable cost which the county council may incur in the repair and reinstatement of so much of any main or other road or part thereof for which the county council are or may become responsible for the maintenance or of the road over any county bridge in which the mains pipes or works of the Corporation are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains pipes or works :
- (9) The county council shall not be liable for or in respect of any damage or injury done to any mains pipes or works of the Corporation laid or fixed in or upon the metalled portion of any main road or county bridge arising from the reasonable use by the county council in the exercise or performance of their powers or duties in regard to the maintenance or repair of roads or bridges of a steam or other roller not exceeding fifteen tons in weight :
- (10) If any difference arises at any time between the county council and the corporation touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by an engineer to be agreed on between the county council and the Corporation as arbitrator and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 and any statutory modification thereof shall apply to such arbitration.

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For protec-
tion of Great
Western
Railway
Company.

49. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall unless otherwise agreed between the Great Western Company and the Corporation apply and have effect with regard to so much of the water limits as is outside the limits of supply which were authorised by the Newbury District Water Order 1876 (that is to say):—

- (1) In constructing laying down and executing and also (except in cases of emergency) in effecting the repairs or renewals of any work of the Corporation which may be situate upon across over under or in any way affecting the railways or other property belonging to or used by the Great Western Company the same shall be done by and in all things at the expense of the Corporation except as in this section is otherwise provided and under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the Great Western Company and at such time or times as he shall reasonably approve and so as not to interfere with the structure of any such railways and except in cases of repair according to plans sections and particulars to be submitted to and reasonably approved by the said engineer before any such works shall be executed. Provided that if the said engineer shall not signify his approval or disapproval of such plans sections and particulars within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof:
- (2) The Corporation shall restore and make good to the reasonable satisfaction of the said engineer the railways and other property of the Great Western Company and the roads over or under any bridge or over any level crossing of such railways or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any of the operations of the Corporation:
- (3) If the Great Western Company so elect they may themselves execute and maintain the said works (other than the actual laying down and main-

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tenance of the pipes) and may recover the reasonable costs of so doing from the Corporation (including compensation payable to any workmen or their legal representatives or dependents who may be injured or killed whilst employed by the Great Western Company in and about the execution or maintenance of such works) :

- (4) All such works shall be constructed executed and maintained so as not to cause any injury or damage to the railways or other property of the Great Western Company or any interruption to the passage or conduct of traffic over such railways or at any station thereon and if any such injury damage or interruption shall arise from the acts or operations of the Corporation or by reason of the failure of the Corporation to maintain such works or the bursting leakage or failure of the works of the Corporation under or near to any railway or other property of the Great Western Company all such injury or damage shall forthwith be made good by the Corporation at their own expense and to the reasonable satisfaction of the said engineer and the Corporation shall indemnify the Great Western Company from all claims in respect of any such injury damage or interruption and shall make compensation to the Great Western Company for and in respect thereof including compensation payable to any workmen or their legal representatives or dependents :
- (5) In the event of the Corporation failing to make good such injury or damage as aforesaid or failing to maintain all such works (where they pass under or over or in any way affect the railways or other property of the Great Western Company) in substantial repair and good order to the reasonable satisfaction in all respects of the said engineer or in case of emergency the Great Western Company may make good the same and make and do in and upon as well the lands of the Corporation as their own lands all such repairs and things as may be reasonably requisite and recover the reasonable expense thereof (including compensation payable to any

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workmen or their legal representatives or dependents) from the Corporation :

- (6) If it should be necessary during the construction of any of the said works or by reason of the existence of the same to alter any of the telegraph telephone or signal posts or wires or other work or apparatus belonging to or on the railways of the Great Western Company the Great Western Company may effect such alterations and the Corporation shall repay to them the reasonable expenses incurred by them in and connected with such alterations :
- (7) The Corporation shall bear and on demand pay to the Great Western Company the reasonable expenses of the employment by them during the construction of any of the said works or the carrying out of any work of maintenance or repair thereof over under or across the railways or other property of the Great Western Company of a sufficient number of inspectors signalmen or watchmen to be appointed by the Great Western Company for watching and protecting the said railways and the conduct of the traffic thereon with reference to and during the execution of the said works or the carrying out of any work of maintenance or repair thereof and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults during the execution of any of such works of the Corporation or their contractors or any person or persons in the employ of the Corporation or their contractors such reasonable expenses shall include compensation payable to any workmen or their legal representatives or dependents who may be injured or killed whilst employed by the Great Western Company in and about such works during the execution or the carrying out of any work of maintenance or repair thereof :
- (8) If the Great Western Company at any time or times hereafter require under their existing powers to construct any additional or other works upon their lands or railways or to extend

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alter or repair their railways or other property upon across over or under which any of the works of the Corporation may have been constructed or laid the Great Western Company may after giving to the Corporation fourteen days' notice in writing under the hand of their secretary or general manager or in case of emergency after giving such notice as is possible divert support or carry the said works of the Corporation across over or under their railways or other property at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be and so as not to interrupt or interfere with the supply of water without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works or any such interference Provided that any works executed by the Great Western Company under this subsection shall be executed to the reasonable satisfaction of the Corporation :

- (9) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering reconstructing repairing or maintaining their railways or other works under their existing powers by reason of the existence of the said works of the Corporation laid or executed under the powers of this Act upon across over or under the same shall be paid by the Corporation :
- (10) The Corporation shall not without the previous consent of the Great Western Company exercise the powers conferred on them by the sections of this Act of which the marginal notes are " Application of Waterworks Clauses Act 1847 to discharge pipes and telephones " " Power to lay pipes in private streets " " Meters in streets to measure water or detect waste " in respect to any street which is the property of the Great Western Company but such consent shall not be unreasonably withheld :
- (11) Nothing in this section contained shall prejudice alter or affect the rights of the Great Western

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Company or the Corporation under any agreement between them relating to the mains pipes or other works of the Corporation and where the provisions of such agreement are inconsistent with the provisions of this section the provisions of the said agreement shall apply :

- (12) Any difference arising between the Corporation and the Great Western Company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed failing agreement at the request of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

PART IV.

COLD AIR STORES.

Power to purchase business of ice company.

50. The Corporation may by agreement with the ice company purchase the undertaking and business of the ice company.

Power to establish cold air stores.

51. Upon the undertaking of the ice company being purchased by the Corporation the Corporation may maintain and extend and carry on a refrigerator or cold air stores and may manufacture purchase sell or otherwise deal in ice and may provide erect and maintain all machinery apparatus and appliances necessary for the proper working and use of such refrigerator or cold air stores and for the manufacture and storage of ice and for the storage and preservation of meat and other articles of food and may demand and take in respect of the use of any such refrigerator or cold air stores and for the supply of ice such charges as the Corporation may determine.

PART V.

LANDS.

Power to take lands.

52. Subject to the provisions of this Act the Corporation may enter on take and use—

- (1) For the purpose of maintaining access to the pumping station and waterworks of the Corporation and their cold air stores a right of way

for horses vehicles and foot passengers over the road or path across the lands in the borough known as the Northcroft and numbered 12 on the deposited plans :

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- (2) For the provision of space for a stand for vehicles for and in connection with the Corporation's markets and fairs and their fire station and for other municipal purposes such of the lands in the borough numbered 2 to 11 inclusive on the deposited plans and described in the deposited book of reference as the Corporation may require.

53. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Berks for the correction thereof and if it appears to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Berks and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relates and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Correction
of errors in
deposited
plans and
book of
reference.

54. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the nineteenth day of November nineteen hundred and twenty-four if in the opinion of the tribunal the improve-

Compensa-
tion in case
of recently
acquired
interest.

A.D. 1925. ment alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Period for compulsory purchase of lands. **55.** The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Retention and disposal of lands. **56.** Notwithstanding anything in any Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any Act incorporated with this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of sale of surplus lands. **57.—**(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Provided that—

(a) the amount to be applied in the purchase of lands under this section shall not exceed the

amount for the time being unexhausted of the A.D. 1925.
borrowing powers conferred by or under this
Act for the purpose of such purchase;

- (b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

58. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons
under
disability
may grant
easements
&c.

PART VI.

PARKS AND RECREATION GROUNDS.

59.—(1) The Corporation may in any park or recreation ground belonging to them lay out and maintain lawns grounds and courses for games and provide the necessary apparatus for the use of the same and do all such acts and employ such persons as may be required for those purposes.

Powers of
Corporation
with regard
to parks and
recreation
grounds.

(2) The Corporation may upon any portion of any park or recreation ground set apart by them under the provisions of the Public Health Acts Amendment Act 1907 (in this section called "the Act of 1907") erect construct and maintain all proper and convenient houses pavilions dressing rooms and other buildings works and conveniences.

(3) Notwithstanding anything contained in section 76 (Powers as to parks and pleasure gardens) of the Act of 1907 the Corporation may exclude the public wholly from any part of a park or recreation ground laid out by them under subsection (1) of this section except in

A.D. 1925. — accordance with the provisions of any byelaws made by the Corporation under the powers of this section and the Corporation may make such reasonable charges as they may think expedient for the use of any part of a park or recreation ground so laid out by them and set apart under the said section 76 of the Act of 1907.

(4) The Corporation may from time to time let for terms not exceeding twelve months to any club company body or persons any portion of any park or recreation ground set apart by them under the provisions of the Act of 1907 and any houses pavilions dressing rooms and other buildings works or conveniences erected thereon upon such reasonable terms as the Corporation may think fit and may authorise any such club company body or persons to charge for the use of such portion of park or recreation ground and of such pavilions dressing rooms and other buildings works and conveniences :

Provided that the Corporation shall not so let more than one-half of the total area of their parks and recreation grounds at any one time.

(5) The Corporation may make byelaws for regulating the use of any lawns grounds and courses for games laid out by them in any park or recreation ground and for securing good and orderly conduct during such use and they may by such byelaws provide for the exclusion of the public from any such lawn ground and course or prescribe the terms and conditions on and subject to which any person may use any such lawn ground or course.

Receipts
and ex-
penses
under this
Part of Act.

60. Subject to the provisions of this Part of this Act the moneys received by the Corporation under this Part of this Act shall be carried to the credit of the borough fund and the expenses incurred by them in exercising the powers contained in this Part of this Act may be paid out of the same fund.

Powers with
regard to
Victoria
Park.

61. Notwithstanding any custom to the contrary the Corporation may prohibit all persons from grazing animals or otherwise using the park or recreation ground known as Victoria Park except to such extent as the Corporation may allow and the powers of the Corporation with regard to parks and recreation grounds under this and any other Act may be exercised as fully and freely

with regard to Victoria Park as with regard to the other parks and recreation grounds of the Corporation : A.D. 1925.
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Provided that the Corporation shall not let any part of Victoria Park or use or permit the use of any part thereof for any purpose other than that of a public open space and recreation ground without the consent of the Minister of Agriculture and Fisheries.

PART VII.

RATING PROVISIONS.

62.—(1) This Part of this Act shall come into operation on the thirty-first day of March nineteen hundred and twenty-six. Commence-
ment and
interpreta-
tion.

(2) In this Part of this Act unless the subject or context otherwise requires—

“ The parish ” means the parish of Newbury ;

“ The overseers ” means the overseers of the parish ;

“ The poor rate ” means the poor rates of the parish ;

“ The consolidated rate ” means the poor rate as by this Part of this Act authorised to be levied and collected.

63.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund and general district rate or either of them shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate. Expenses to
be paid out
of borough
fund and
rate.

(2) The district fund shall be closed and any balance which at the commencement of this Part of this Act is standing to the credit or to the debit of the district fund

A.D. 1925. — or the general district rate respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund and any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

(3) The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

Contribution to borough rate to be paid out of poor rate.

64. The contribution of the parish to the borough rate shall be paid by the overseers out of the poor rate to be made for the parish and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall apply to such contribution.

Poor rate to be called "the consolidated rate."

65. The poor rate (inclusive of the contributions to the borough fund levied in pursuance of the provisions of this Act) shall be called "the consolidated rate" but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate.

Differential rating in certain cases.

66. The provisions contained in this section shall have effect with respect to the consolidated rate to be made and levied by the overseers (that is to say):—

- (1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the consolidated rate in respect of such hereditaments on the full rateable value

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—

thereof but (subject as next hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of sixty-five per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section :

- (2) Provided that during the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the borough as if the following provision were substituted for section 1 thereof (that is to say) :—

“ The owner of tithe rentcharge attached to a benefice shall be liable to pay only sixty-five per centum of the amount payable under subsection (1) of the section of the Newbury Corporation Act 1925 of which the marginal note is ‘ Differential rating in certain cases ’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining thirty-five per centum thereof shall on demand being made by the collector of the rate on the surveyor of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of the estate duty grant ” :

- (3) Provided also that—

(a) during the continuance of the Agricultural Rates Acts 1896 and 1923 the occupier of any agricultural land as defined in the Agricultural Rates Act 1896 shall be liable to pay in each year in respect of such land a rate calculated on the basis of twenty-five per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section ;

(b) if the Agricultural Rates Act 1923 shall expire before the expiration of the Agricultural Rates Act 1896 “ two-fifths ” shall during the continuance of the latter Act be substituted for “ twenty-five per centum ” in paragraph (a) of this subsection :

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(4) Nothing in this section shall in any way affect—

(a) the share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or

(b) the operation of the Agricultural Rates Act 1923 or the power of the Minister of Health to estimate as respects each half-year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923;

(c) the operation of the Ecclesiastical Tithe Rentcharges (Rates) Acts 1920 and 1922; or

(d) the amount of the contribution for any purposes to be made by the parish out of the poor rate.

Appeals.

67.—(1) If any occupier referred to in subsection (1) of the section of this Act of which the marginal note is “Differential rating in certain cases” claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions for the county of Berks holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days’ notice in writing of such appeal and of the ground thereof shall have been given by the appellant to the Corporation and the overseers.

(2) On appeals under this section the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

68. The overseers if they think fit may make an allowance by way of discount not exceeding five per centum on the amount due in respect of any consolidated rate or any instalment thereof from every person who pays the same within such time after demand of the rate or after the date when any instalment falls due as the case may be as the overseers shall prescribe and in any such case the overseers shall make such allowance accordingly. Provided that any such allowance shall in every case be of equal amount under like circumstances :

A.D. 1925.

—
Discount on consolidated rate.

Provided also that notice of this enactment if and so long as the overseers shall allow such discount shall be endorsed on every demand note for rates.

69. Any water rent or charge payable to the Corporation may be included with the consolidated rate (but distinguished therefrom) in any book or books of assessments and in one demand note.

Water rent and gas accounts may be collected with consolidated rate.

70. The consolidated rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the consolidated rate or water rent or charge shall be in such form as the Minister of Health may from time to time prescribe.

Form of rate &c. to be prescribed by Minister of Health.

71. For the purposes of section 133 (Until completion of works promoters shall make good any deficiency of land tax and poor's rate caused by lands being taken) of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be one-half of the amount in the pound of the consolidated rate.

Application of section 133 of Lands Clauses Consolidation Act 1845.

72. No warrant of commitment in respect of non-payment of the consolidated rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate.

As to recovery of consolidated rate.

73. Section 267 (Service of notices) of the Public Health Act 1875 shall apply to any demand for the consolidated rate to be served by the overseers.

Service of demands.

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Rating of
owners
instead of
occupiers.

74.—(1) The owner instead of the occupier may from time to time at the option of the Corporation be rated to the consolidated rate—

(a) where the rateable value of the property does not exceed twelve pounds; or

(b) where the premises are let in separate apartments; or

(c) where the rents are collected weekly :

Provided that—

(i) where the rateable value of the property does not exceed twelve pounds the owner so rated shall be entitled to a deduction of fifteen per centum from the amount of the rate when paid by him if he shall pay the same within three months after the rate shall have been made or within two months after the same shall have been demanded whichever shall be the later;

(ii) where the owner of any premises referred to in this subsection is willing to enter into an agreement to pay the rates whether the premises are occupied or not the Corporation may make a further allowance not exceeding fifteen per centum from the amount of the rate when paid by him within such period as the Corporation may determine not being less than three months after the rate has been demanded.

(2) When the Corporation exercise their powers under this section they shall forthwith give notice thereof to the overseers and the overseers shall rate the owner and the owner shall pay the rate accordingly and during the currency of any such notice the provisions of this section shall apply within the borough in substitution for the provisions with regard to the rating of owners instead of occupiers which are contained in sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869.

Amendment
of consoli-
dated rate.

75. In addition and without prejudice to any other powers which may be exercised by them the overseers may amend the consolidated rate of the parish by inserting therein the name of any person

claiming or entitled to have his name inserted or by inserting the name of any person who ought to have been rated or by striking out the name of any person who ought not to have been assessed or by raising or reducing the sum at which any person has been assessed if it appears to the overseers that he has been under-rated or over-rated or by making any other alteration which would make the rate conformable to the provisions of this Act and no such amendment shall be held to avoid the rate :

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Provided that—

- (1) Any person who may feel himself aggrieved by any such amendment shall have the same right of appeal therefrom as he would have had if the matter of amendment had appeared on the rate originally made and with respect to him an amended rate shall be considered to have been made at the time when he first received notice of the amendment ;
- (2) An amended rate shall not be payable by any person the amount of whose rate is increased by the amendment or whose name is thereby newly inserted until seven days after such notice has been given to him.

76.—(1) The Corporation may appoint and remove such officers as they may deem necessary to assist the overseers in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Corporation and paid out of the poor rate and other local rates and funds in such proportions as the Corporation shall determine.

Power to
appoint
officers to
assist
overseers.

(2) All officers so appointed shall give such security for the due performance of their duties as may be required by the Corporation and such security shall be deposited with the Corporation.

(3) Such officers shall not be required to give security to the Guardians of the Newbury Union under section 61 of the Poor Law Amendment Act 1844.

77. The purposes to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may

Borough
rate may
include
working
balance.

A.D. 1925. — be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance.

Overseers

may require
returns.

78.—(1) The overseers may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the parish (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the Fourth Schedule to this Act and containing the particulars therein mentioned or referred to :

Provided that (except for purposes connected with the preparation of and preliminary to a general re-valuation for rating) the powers conferred by this section shall only be exercised—

- (a) upon any change in the occupation or ownership of any hereditament; or
- (b) upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) in the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after the receipt of such notice as aforesaid shall be liable on summary conviction to a penalty not exceeding two pounds and to a daily penalty not exceeding two pounds and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers shall whenever required by the assessment committee of the Newbury Poor Law Union produce from time to time to such committee returns

or any of them obtained by the overseers under the A.D. 1925.
provisions of this section.

PART VIII.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

79.—(1) The Corporation may from time to time Power to
independently of any other borrowing power borrow at borrow.
interest for the purposes mentioned in the first column
of the following table the respective sums mentioned
in the second column thereof and in order to secure
the repayment thereof and the payment of interest
thereon they may mortgage or charge the respective
revenues funds and rate mentioned in the third column
of the said table and they shall pay off all moneys so
borrowed within the respective periods (which for the
purposes of this Act and of any enactment incorporated
therewith or applied thereby shall respectively be “the
prescribed period”) mentioned in the fourth column
thereof (namely) :—

1.	2.	3.	4.
Purpose.	Amount.	Charge.	Period for Repayment.
(a) For the payment of any sums payable by the Corporation under the scheduled agreement to the Company and their directors and the redemption of debentures and for defraying the costs and expenses incident to the purchase and transfer of the undertaking of the company to the Corporation (other than the Corporation's costs of this Act).	The sum requisite.	The revenue of the water undertaking the borough fund and borough rate.	Fifty years from the day of transfer.

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1.	2.	3.	4.
Purpose.	Amount.	Charge.	Period for Repayment.
(b) For water mains pipes and apparatus.	£ 20,000	The revenue of the water undertaking and the borough fund and borough rate.	Forty years from the date or dates of borrowing.
(c) For and in connection with the purchase of land and interests therein.	3,500	The borough fund and borough rate.	Sixty years from the date or dates of borrowing.
(d) For providing a stand for vehicles.	600	The borough fund and borough rate.	Sixty years from the date or dates of borrowing.
(e) For paying the costs charges and expenses of this Act.	The sum requisite.	The borough fund and borough rate.	Five years from the passing of this Act.

(2) Any mortgages which may be issued by the Corporation in pursuance of the agreement set out in the First Schedule to this Act shall be deemed to be issued in partial exercise of the borrowing powers to be conferred for purposes (a) of the foregoing table and the moneys represented thereby shall be deemed to be moneys borrowed by the Corporation under such powers.

(3) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act and the water undertaking.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister of Health.

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Minister of Health.

(4) The provisions of this section prescribing the revenue funds or rates which may be mortgaged or

charged shall not limit the powers conferred upon the Corporation by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes." A.D. 1925.

80. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts any sums which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts. Certain provisions of Public Health Acts not to apply.

81. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act. Mode of raising money.

82. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say) :— Provisions of Public Health Act 1875 as to mortgages to apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

83. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months from the date of borrowing. Mode of payment off of money borrowed.

A.D. 1925.

Sinking
fund.

84.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either :—

- (a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or
- (b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based,

A.D. 1925.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as that Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health

A.D. 1925. be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister of Health shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

Power to invest all sinking funds in statutory securities.

85. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Power to use sinking fund instead of borrowing.

86.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

- (a) a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(b) moneys borrowed and charged upon all revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein. A.D. 1925.
—

(2) The Corporation when exercising the powers conferred on them by this section shall—

(a) withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(b) credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(c) debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Minister of Health with regard to the exercise of the powers contained in this section as that Minister shall require.

87.—(1) The Corporation shall have power—

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or

Power to
re-borrow.

A.D. 1925.
—

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Sinking
fund for
debentures
of company.

88.—(1) The Corporation shall make provision for the extinction of the debentures of the company and of any stock or other security substituted for such debentures by means of a sinking fund so as to purchase and extinguish or to be in a position to purchase and extinguish the said stock or other security within a period of fifty years from the day of transfer and if at the end of that period the said stock or other security is not wholly extinguished then the Corporation shall so long as they are liable to pay interest thereon apply in or towards payment thereof the annual income arising from the sinking fund provided under this section.

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(2) The foregoing provisions of this Act with reference to sinking funds shall extend and apply with any necessary modifications to the sinking fund to be provided under this section and for the purposes thereof the prescribed period shall be the period of fifty years from the day of transfer.

(3) The Corporation may at any time apply the whole or any part of the sinking fund to be provided under this section in or towards the purchase of the debentures of the company or any part thereof or in or towards paying off any stock or other security substituted for such debentures. Provided that if such fund be an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4)—(a) At any time before the expiration of the prescribed period the Corporation may borrow at interest such money as they may require for the purchase of the debentures of the company or any part thereof;

(b) The provisions of this Act with reference to the borrowing of money and the reborrowing and repayment thereof shall extend and apply to all money borrowed under this subsection and for the purposes of those provisions the prescribed period shall be the period of fifty years from the day of transfer.

89.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

Power to
use one
form of
mortgage
for all
purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Fifth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory

A.D. 1925. borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the town clerk a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fifth Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the town clerk a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United

Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

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(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

90.—(1) The Corporation may from time to time for the purpose of providing temporarily for any current expenses that may be incurred by them in the execution of any Act of Parliament or Provisional Order confirmed by or under any Act of Parliament utilise any sinking funds or reserve funds which they may have in hand crediting the said sinking funds or reserve funds with such fair rate of interest not being less than three per centum per annum as they may resolve. The amount of any sinking or reserve funds which the Corporation may utilise for such purpose shall not aggregate at any time an amount equal to one-fourth of the total amount of the before-mentioned expenses for the immediately preceding financial year.

Power to
use sinking
funds or
reserve
funds tem-
porarily.

(2) All sums borrowed by the Corporation under this section in respect of the current expenses of any financial year shall be repaid out of the revenue received by the Corporation in respect of such year.

(3) When the Corporation borrow money under this section—

(a) the town clerk shall within forty-two days after the end of each financial year furnish to the

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Minister of Health a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Minister shall approve or require;

(b) the Minister of Health may make such investigation as may be necessary to satisfy himself that the requirements of this section have been complied with and if it appear to the Minister of Health by the said report or by such investigation that the Corporation have failed to comply with the requirements of this section that Minister may by order suspend the operation of the powers of this section for such period as he may think fit.

(4) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March nineteen hundred and twenty-six unless they shall have been continued by Act of Parliament or by an order made by the Minister of Health which order that Minister is hereby empowered to make and in the event of his making any such order he is hereby empowered to make such modifications or amendments in the provisions of this section as may appear to him to be necessary.

Application
of money
borrowed.

91. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed under the section of this Act whereof the marginal note is "Power to use sinking funds or reserve funds temporarily") to which capital is properly applicable.

Period for
repayment
of loans under
Municipal
Corporations
Act 1882.

92. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Receipt in
case of
persons not
sui juris.

93. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

94. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the borough fund.

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—
Expenses of
execution
of Act.

95. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register.

Corporation
not to re-
gard trusts.

96.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall be not less than one thousand pounds in the whole.

Appoint-
ment of
receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

97. A person lending money to the Corporation shall not be bound to inquire as to the observance by the Corporation of any provisions of any Act relating to the Corporation or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection
of lender
from
inquiry.

98.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the

A.D. 1925. Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment now in force in the borough requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Interest on
mortgages
held jointly.

99. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the town clerk by any other of them.

Application
of revenue
and pay-

100.—(1) The Corporation shall keep the accounts in respect of the water undertaking separate from all

their other accounts distinguishing therein capital from income and shall apply all money from time to time received by them in respect of their water undertaking except borrowed money and money properly applicable on capital account as follows :—

A.D. 1925.

—
ment of
deficiencies
in relation
to water
under-
taking.

First—In payment of the working and establishment expenses and cost of maintenance renewal and repair of the undertaking;

Secondly—In payment of the interest on moneys borrowed by the Corporation (including the interest payable on the debentures of the company transferred to the Corporation until such debentures are redeemed) for the purposes of or connected with the undertaking;

Thirdly—In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking and in respect of the debentures of the company;

Fourthly—In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking and in the provision of funds for working capital;

Fifthly—In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-tenth of the aggregate capital expended for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof or for any extension of the said works or otherwise for the benefit of the undertaking and so that

A.D. 1925.
—

if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the said money received (together with the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the water undertaking of the Corporation shall be made good out of the borough rate made next or next but one after such deficiency is ascertained.

Apportionment of items.

101. In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

Inquiries by Minister of Health.

102.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by that Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

103. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act.

A.D. 1925.

—
General
provisions
as to
byelaws.

104. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *primâ facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Evidence of
appoint-
ments
authority
&c.

105.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

Authentica-
tion and
service of
notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

106. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of

As to
breach of
conditions
of consent

A.D. 1925.
—
of Corpora-
tion.

any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Consents of
Corporation
to be in
writing.

107. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Apportion-
ment of
expenses in
case of
joint
owners.

108. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Recovery of
demands.

109. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Several
sums in
one
summons.

110. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Service of
summons on
members of
council.

111. Notwithstanding anything contained in the Second Schedule of the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member

of the council by post by prepaid letter at the ordinary rate of postage. A.D. 1925.

112. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough. Informations by whom to be laid.

113. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

114. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensation how to be determined.

115. The agreement dated the fifteenth day of December nineteen hundred and twenty-four and made between William Henry Dalglish Lester of the one part and the Corporation of the other part set out in the Sixth Schedule hereto is hereby confirmed and made binding upon the parties thereto. Confirmation of agreement with William Henry Dalglish Lester.

116. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than Powers of Act cumulative.

A.D. 1925. — a daily penalty for a continuing offence) for the commission of the same offence.

Application
of Arbitra-
tion Act
1889.

117. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889.

Saving for
indictments
&c.

118. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Application
of section
265 of Pub-
lic Health
Act 1875.

119. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

Judges not
disqualified.

120. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Crown
rights.

121. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of
Act.

122. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the borough fund and borough rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1925.

THE FIRST SCHEDULE.

AN AGREEMENT made the sixteenth day of December one thousand nine hundred and twenty-four between the NEWBURY DISTRICT WATER COMPANY LIMITED whose registered office is at Kendrick House Wharf Road in the borough of Newbury in the county of Berks (hereinafter referred to as "the Company") of the one part and the MAYOR ALDERMEN AND BURGESSES of the BOROUGH OF NEWBURY (hereinafter referred to as "the Corporation") of the other part.

WHEREAS the Company were authorised by the Newbury District Water Order 1876 as confirmed by the Gas and Water Orders Confirmation (Chapel-en-le-Frith &c.) Act 1876 to supply water within the limits of supply defined in the said Order :

And whereas the issued share capital of the Company now consists of twenty thousand pounds divided into four thousand ordinary shares of five pounds each :

And whereas the Company have also created and issued six thousand four hundred pounds debentures bearing interest at various rates :

And whereas the Company are willing to sell and the Corporation are willing to purchase the undertaking of the Company upon the terms and conditions hereinafter contained :

Now it is hereby agreed as follows :—

1. The Company shall sell and transfer and the Corporation shall purchase as a going concern (but subject to the debentures as hereinafter provided) the whole of the undertaking of the Company together with all and singular their real and personal property of whatsoever description and tenure goodwill assets and effects of whatever nature and kind as the same exist on the day of transfer together with all powers rights liberties privileges and authorities of the Company belonging or appertaining thereto whether by virtue of the said Order or otherwise The undertaking of the Company shall be deemed to include—

(a) All the waterworks reservoirs waters water supplies water rights mains pipes apparatus and other works

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—

and conveniences with all lands buildings estates rights interests easements privileges securities choses in action books writings plant stores chattels and effects and other real and personal property and mixed estates and effects of the Company :

- (b) The benefit of all agreements to which the Company is a party in existence on the day of transfer and all claims and demands powers rights privileges liberties and authorities of or to which the Company are seised or possessed or in any way entitled :
- (c) All moneys and investments and securities for money of the Company at the day of transfer including the reserve fund cash in hand and cash standing to the credit of the Company at their bank and such sums of money as may be due to the Company in respect of water rates or rents or other debts owing to or accruing due to them and recoverable by the Company on or prior to the day of transfer.

2. (a) As consideration for the said sale the Corporation shall in respect of each ordinary share of the nominal value of five pounds being part of the four thousand ordinary shares in the capital of the Company at the option of the holder of such share either pay the sum of eight pounds five shillings in cash or in lieu thereof issue a mortgage to secure the repayment of the sum of eight pounds five shillings bearing interest until repayment payable half-yearly at the rate of four pounds fifteen shillings per centum per annum and in either case shall pay in addition in respect of each such share a sum equivalent to interest at the rate of eight pounds per centum per annum (less income tax) on the nominal value of such share from April 1st 1925 until the day of transfer.

(b) Prior to the day of transfer the Company shall ascertain from each shareholder in respect of each share held by him whether he elects to be paid in cash or by the issue of a mortgage Any shareholder who does not inform the Company in writing of his election not less than eighteen days prior to the day of transfer shall be deemed to have elected to be paid in cash in respect of all shares held by him The Company shall close their register of transfer of shares forty-two days prior to the day of transfer.

(c) Not less than fourteen days prior to the day of transfer the Company shall issue to the Corporation a statement of the holders of ordinary shares in the capital of the Company of the amount of their respective holdings and of the amount of cash to be paid or mortgages to be issued to each shareholder in respect of such holdings.

A.D. 1925.

3. (a) The purchase shall be completed on the first weekday after the expiration of a period of three calendar months from the date when the Royal Assent is given to the Bill hereinafter mentioned or on such earlier day as the parties hereto may agree upon (which day is therein referred to as "the day of transfer") and thereupon the Company shall execute and procure and do all assurances and things necessary for vesting the undertaking in the Corporation.

(b) The Corporation shall thereupon pay and deliver to the Company the total amount of moneys and the total number of mortgages required to be paid and issued by the Corporation as consideration for the said sale in accordance with clause two hereof and the receipt of any two directors of the Company shall be a sufficient discharge to the Corporation for the moneys and mortgages thereby acknowledged to have been received.

(c) The Company shall be responsible for and undertake the payment of the said moneys and the delivery of the said mortgages to the respective shareholders of the Company entitled to receive the same and the Corporation shall not be bound to see to the application and delivery or be answerable for any loss or misapplication or non-delivery of the said moneys or any part thereof or of the said mortgages or any of them.

4. The Corporation shall take over pay and discharge and indemnify the Company against all the debts and liabilities of or attaching to the undertaking at the day of transfer including the debentures and all interest accrued due thereon on the day of transfer and the debentures shall continue to be a charge on the undertaking in the hands of the Corporation.

5. (a) The Company shall until the day of transfer continue to carry on the undertaking according to their usual course of business and shall keep and deliver up the undertaking in its present state and condition (reasonable wear and tear excepted) and shall not after the date of this agreement make any outlay or incur any liability otherwise than in the ordinary course of business or borrow any money or issue any mortgages debentures or debenture stock or any additional capital or contract or make or enter into any new liability contract agreement or other obligation in respect of the undertaking without first obtaining the written consent of the Corporation.

(b) The directors of the Company until the day of transfer shall be paid out of the funds of the Company by way of remuneration for their services at the rate of two hundred pounds per annum and such remuneration shall be divided among them in such proportions and manner as the directors may determine. The chairman of the directors of the Company shall also be paid his travelling expenses of attending and returning from

A.D. 1925. board and committee meetings up to and including the day of transfer.

(c) The Company may on the thirty-first day of March one thousand nine hundred and twenty-five out of the available profits of the undertaking declare and pay a dividend at the rate of eight per centum (less income tax) on the ordinary share capital of the Company in respect of the preceding twelve months but except as provided in this sub-clause the Company shall not declare or pay any dividend after the date of this agreement.

6. The Corporation shall pay compensation to any officer or servant (other than the directors auditors secretary and engineer and manager of the Company) in the regular employment of the Company who shall not be retained by the Corporation in the same or similar office or employment and at the same or like salary and on the same or like terms and conditions in at or on which they respectively were employed by the Company on the day of transfer in respect of any loss of office or diminution of salary by reason of the transfer of the undertaking to the Corporation and such compensation shall be determined by the Corporation in accordance with the provisions of section 120 of the Local Government Act 1888 and as if any such officer or servant were an officer declared by that Act to be entitled to compensation. Provided that no such officer or servant shall have his salary or wages increased or the terms of his service altered by the Company between the date of this agreement and the day of transfer except with the written consent of the Corporation.

7. On completion of the purchase the Corporation shall pay as compensation for loss of office in lieu of any compensation which would otherwise be payable under Clause 6 hereof—

(a) To the directors of the Company the sum of one thousand four hundred pounds which sum shall be divided by the directors amongst themselves in such manner as they shall determine :

(b) To the secretary of the Company Stanley Vickers Pinniger the sum of three hundred pounds :

(c) To David Owen an auditor of the Company the sum of sixty-five pounds and to John Mason an auditor of the Company the sum of twenty-five pounds.

8. If from any cause the sale and purchase shall not be actually completed on the day of transfer the Company shall as agents for and at the expense and risk of the Corporation carry on the undertaking until the sale and purchase shall be actually completed.

9. After the sale and purchase shall have been actually completed the Company shall continue to subsist only for the purpose of winding up their affairs. A.D. 1925.
—

10. The Corporation shall pay the Company the legal costs and expenses of the Company of and in connection with the sale of the undertaking and the winding up of the Company amounting to one hundred and fifty guineas (exclusive of counsel's fees).

11. The Corporation shall promote and use its best endeavours to procure the passing into law in the next session of Parliament of a Bill to authorise the transfer of the undertaking to the Corporation and to give effect to this agreement and the Company shall aid and assist the Corporation in obtaining the passing into law of the said Bill and shall supply to the Corporation such particulars information and evidence as the Corporation may reasonably require and the Company by themselves their officers and agents shall support the Bill by evidence or otherwise if so required by the Corporation.

12. This agreement is subject to confirmation by Parliament and to such alterations as may be made by Parliament therein but in the event of either House of Parliament making any material alteration therein either party may withdraw from the same and in such case or if the said Bill shall not be passed this agreement and every clause thereof shall be void and of no effect.

13. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to the rights liabilities or duties of either party hereunder the same shall be referred to a barrister-at-law to be agreed upon by the parties hereto or failing agreement to be appointed on the application of either party by the President of the Law Society and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and to this agreement as if it were a submission to arbitration under that Act.

In witness whereof the Company and the Corporation have hereunto caused their respective common seals to be hereunto affixed the day and year first hereinbefore written.

The common seal of the NEWBURY
DISTRICT WATER COMPANY
LIMITED was hereunto affixed
in the presence of

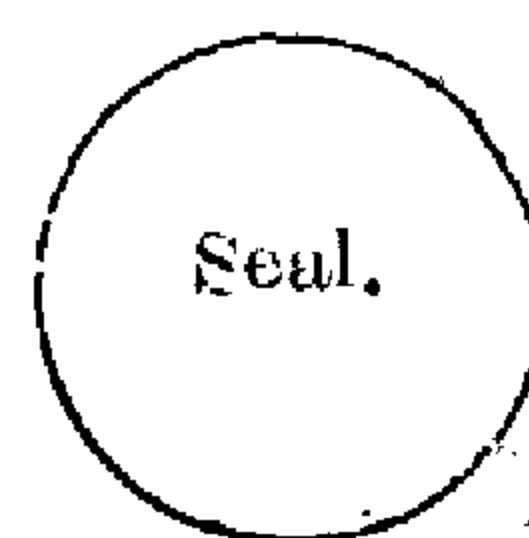
E. HAROLD BANCE

W. H. COLDICUTT

S. V. PINNIGER

Secretary.

} Directors.



[Ch. c.]

Newbury Corporation [15 & 16 GEO. 5.]
Act, 1925.

A.D. 1925. The common seal of the MAYOR
ALDERMEN AND BURGESSES
of the BOROUGH OF NEWBURY
was hereunto affixed in the
presence of



J. STRADLING
Mayor.

S. WIDDICOMBE
Town Clerk.

THE SECOND SCHEDULE.

FORM OF DEED OF TRANSFER OF COMPANY'S
UNDERTAKING.

Pursuant and subject to the provisions of the Newbury Corporation Act 1925 and for the consideration mentioned in the agreement set forth in the First Schedule to that Act the Newbury District Water Company Limited hereby grant convey and assign to the mayor aldermen and burgesses of the borough of Newbury the undertaking property and assets of the said Company mentioned in the said agreement To hold the same unto and to the use of the said Corporation their successors and assigns subject as in the said agreement mentioned And the said Corporation do hereby accept the same accordingly.

In witness whereof the parties hereto have hereunto affixed their respective common seals the day of
nineteen hundred and twenty-five.

THE THIRD SCHEDULE.

PUMPING STATION.

A well or tank and shaft or boring and pumping station with pumping engines engine and boiler houses and other works buildings and conveniences situated in the parish of Speen in a meadow abutting upon the south side of a footpath leading from Marsh Benham to Newbury which meadow is numbered 212 on the parish map and belongs or is reputed to belong to Pembroke College Oxford and is distant about 120 yards in an easterly direction from the farm house or cottage commonly known as Major Bunny's Dairy.

A.D. 1925.

5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors	
6. Amount of rent or if ground rent only is paid state its amount	£ per £ per
7. Whether the property is held under lease or agreement for a period of years or by the year quarter month or week	
8. (a) Date of commencement of term of lease or agreement (b) Term of years for which granted (c) Whether granted for any consideration in money in addition to the rent or upon any condition as to laying out money in building rebuilding or improvements (If none insert "None.")	(a) (b) (c) Amount paid for lease £
9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair	} Annual Value £
10. (a) Amount of land tax (if any) (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ ... Borne by the (b) £ ... Borne by the

A.D. 1925.
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11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -	
12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - - - (If each undertakes to bear part only of the cost of repairs state the particulars.)	

DECLARATION.

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

THE FIFTH SCHEDULE.

Referred to in the Section of the foregoing Act of which the marginal note is "Power to use one form of mortgage for all purposes."

FORM OF MORTGAGE.

BOROUGH OF NEWBURY.

By virtue of the Newbury Corporation Act 1925 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Newbury (hereinafter referred to as "the Corporation") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by

(hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as herein-

[Ch. c.]

Newbury Corporation [15 & 16 GEO. 5.]
Act, 1925.

A.D. 1925. after provided) at the rate of per centum per
— annum from the day of nineteen
hundred and until payment of the principal
sum such interest to be paid half-yearly on the day
of and the day of
in each year And it is hereby agreed that the
principal sum shall be repaid at the municipal offices in the said
borough [(subject as hereinafter provided) on the day
of nineteen hundred and or (if
not repaid on that date) at any time thereafter on the expira-
tion of six calendar months' notice in writing by the Corporation
to the mortgagee or by the mortgagee to the Corporation]
[by]:

Provided always and it is hereby agreed and declared that
the before-mentioned time for repayment may be extended to
such subsequent day or days and upon any such extension the
before-mentioned rate of interest may be altered to such other
rate or rates of interest as shall from time to time be agreed
upon between the Corporation and the mortgagee and mentioned
in an endorsement to be made hereon under the hands of the
town clerk of the borough for the time being and that upon any
such endorsement being made whether relating to extension
of time only or to extension of time with alteration of rate of
interest the provisions thereof shall be incorporated herewith
and shall operate and take effect as though they had been
originally inserted herein.

In witness whereof the Corporation have caused their cor-
porate seal to be hereunto affixed this day of
nineteen hundred and

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting
the within-mentioned time for repayment of the within-
mentioned principal sum of is hereby
extended to the day of nineteen
hundred and [and the interest to be
paid thereon on and from the day
of nineteen hundred and is hereby
declared to be at the rate of per centum
per annum].

Dated this day of
nineteen hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]

[of
] in

consideration of the sum of pounds A.D. 1925.
paid to me by of

(herein-
after referred to as "the transferee") do hereby transfer to the
transferee [his] executors administrators and assigns [the within-
written security] [the mortgage number of
the revenues of the mayor aldermen and burgesses of the borough
of Newbury bearing date the day
of] and all my right and interest under the same
subject to the several conditions on which I hold the same at
the time of the execution hereof and I the transferee for myself
my executors administrators and assigns do hereby agree to take
the said mortgage security subject to the same conditions.

Dated this day of
nineteen hundred and

THE SIXTH SCHEDULE.

AN AGREEMENT made the sixteenth day of December
one thousand nine hundred and twenty-four between
THE MAYOR ALDERMEN AND BURGESSES of the
BOROUGH OF NEWBURY (hereinafter referred to as
"the Corporation") of the one part and WILLIAM
HENRY DALGLEISH LESTER of "The Hut" Cromwell
Road Wash Common Newbury in the county of
Berks (hereinafter referred to as "the Engineer")
of the other part.

WHEREAS the Engineer is the engineer and manager of the
Newbury District Water Company Limited (hereinafter referred
to as "the company") :

And whereas the Corporation and the company have entered
into an agreement for the transfer of the undertaking of the
company to the Corporation :

And whereas by the said agreement the Corporation have
undertaken to promote a Bill (hereinafter referred to as "the
Bill") in the next session of Parliament to authorise the said
transfer and to give effect to the said agreement :

And whereas the Corporation are willing to appoint the
Engineer and the Engineer is willing to serve the Corporation
after the said transfer as engineer and manager of the said
undertaking in the hands of the Corporation upon the terms
and subject to the conditions hereinafter contained :

A.D. 1925.
—

And whereas by an agreement dated the thirty-first day of May one thousand nine hundred and twenty-four (hereinafter referred to as "the agreement of one thousand nine hundred and twenty-four") and made between the county council of the administrative county of Berks (hereinafter referred to as "the county council") of the one part and the Corporation of the other part after reciting that the county council had duly adopted the Local Government and Other Officers' Superannuation Act 1922 (hereinafter referred to as "the Act") it was agreed that subject to the performance by the Corporation of the obligations and conditions imposed upon them by the agreement of one thousand nine hundred and twenty-four the county council should pay to such officers of the Corporation as occupied the posts specified in the schedule thereto being posts designated as established posts within the meaning of the Act such superannuation allowance on their retirement from the said posts as they would be entitled to under the provisions of the Act if they had been officers of the county council :

And whereas by clause 3 of the agreement of one thousand nine hundred and twenty-four it was provided that the Corporation might at any time with the consent of the county council designate further posts in the service of the Corporation as established posts for the purposes of the agreement of one thousand nine hundred and twenty-four :

Now it is hereby agreed as follows :—

1. The Corporation hereby appoint the Engineer as engineer and manager of the said undertaking as from the date when the said undertaking shall be transferred to and vested in the Corporation.

2. The Engineer shall devote the whole of his time to the duties of the said office of engineer and manager Provided that he shall be permitted to hold such other appointments and carry out such other duties as he has been accustomed to hold or carry out while acting as engineer and manager of the said undertaking in the hands of the company.

3. The Corporation shall pay the Engineer in respect of his service in the said office a salary of five hundred pounds in respect of the first year of five hundred and twenty-five pounds in respect of the second year and of five hundred and fifty pounds in respect of each succeeding year of his service Provided that if the Corporation shall by means of the said undertaking supply water to any premises on the eastern side of the street known as The Broadway Thatcham they shall from and after the first day of April next succeeding the commencement of such supply pay the Engineer in addition to the aforesaid sums an extra salary of fifty pounds per annum.

A.D. 1925.

4. So long as he is able to perform and carry out the duties of the said office the Engineer shall be entitled to hold and occupy the said office at a salary not less than that provided for in clause 3 hereof. Provided that if he shall be guilty of grave misconduct any offence of a fraudulent nature or serious neglect of his duties the Corporation shall be entitled if they so please to dismiss him from the said office.

5. Forthwith after the date when the said undertaking shall be transferred to and vested in the Corporation the Corporation shall designate the office of engineer and manager of the said undertaking as an established post within the meaning of the Act and the agreement of one thousand nine hundred and twenty-four and thereafter shall carry out and perform in respect of the said office all obligations and conditions imposed upon the Corporation by the agreement of one thousand nine hundred and twenty-four with regard to posts designated as established posts and for the purposes of performing such obligations and conditions shall be entitled to deduct from each payment of salary made to the Engineer in accordance with clause 3 hereof an amount equal to five per centum thereof.

6. On his retirement from the said office at any time after he has become entitled under the Act and the agreement of one thousand nine hundred and twenty-four to retire and be paid a superannuation allowance the Corporation shall pay the Engineer for the remainder of his life a superannuation allowance per annum of such an amount (if any) as together with the amount of the superannuation allowance paid to the Engineer by the county council under the Act and the agreement of one thousand nine hundred and twenty-four shall make the total amount of the superannuation allowance received by the Engineer equal to the sum of three hundred pounds per annum or to the amount of the superannuation allowance to which he would be entitled under the Act and the agreement of one thousand nine hundred and twenty-four if his service with the company as engineer and manager of the said undertaking were reckoned as non-contributing service within the meaning of the Act whichever may be the greater.

7. The Corporation will insert in the Bill such clauses as may be necessary to carry this agreement into effect and will use their best endeavours to procure the passing of the Bill with such clauses so inserted.

8. This agreement is subject to the approval of Parliament and to such alterations as may be made by Parliament therein but in the event of either House of Parliament making any material alteration therein either party may withdraw from the same and in such case or if the Bill shall not be passed this

[Ch. c.]

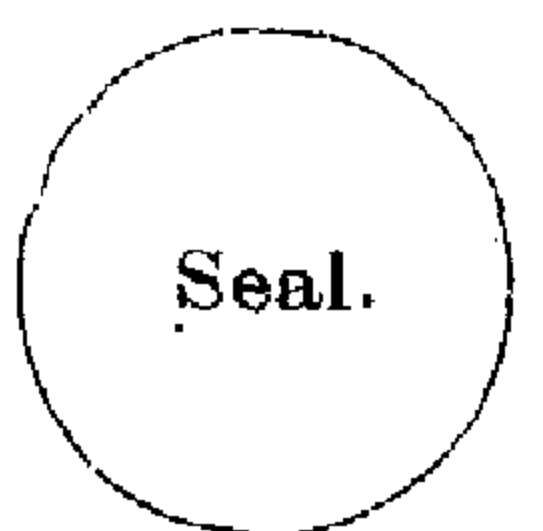
Newbury Corporation [15 & 16 GEO. 5.]
Act, 1925.

A.D. 1925. — agreement and every clause thereof shall be void and of no effect.

9. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to the rights liabilities or duties of either party hereto the same shall be referred to a barrister-at-law to be agreed upon by the parties hereto or failing agreement to be appointed on the application of either party by the President of the Law Society and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and to this agreement as if it were a submission to arbitration under that Act.

In witness whereof the Corporation have caused their common seal to be hereunto affixed and the said William Henry Dalglish Lester has hereunto set his hand and seal the day and year first hereinbefore written.

The common seal of the MAYOR
ALDERMEN AND BURGESSES
of the BOROUGH OF NEWBURY
was hereunto affixed in the
presence of



J. STRADLING
Mayor.

S. WIDDICOMBE
Town Clerk.

Signed sealed and delivered by
the said WILLIAM HENRY
DALGLEISH LESTER in the
presence of

W. H. D.
LESTER.



HENRY A. DAVEY.
Town Clerk's Office
Newbury.

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FOR

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